Empire. They were, in strict sense, fellow-subjects, and in a variety of respects, one people. When the revolution commenced, the patriots did not assert that only the same affinity and social connection subsisted between the people of the colonies, which subsisted between the people of Gaul, Britain and Spain, while Roman provinces, viz., only that affinity and social connection which result from the mere circumstance of being governed by the same prince; different ideas prevailed, and gave occasion to the Congress of 1774 and 1775.

The revolution, or rather the Declaration of Independence, found the people already united for general purposes, and at the same time, providing for their more domestic concerns, by state conventions, and other temporary arrangements. From the crown of Great Britain, the sovereignty of their country passed to the people of it; and it was then not an uncommon opinion, that the unappropriated lands, which belonged to that crown, passed, not to the people of the colony or states within whose limits they were situated, but to the whole people; on whatever principles this opinion rested, it did not give way to the other, and thirteen sovereignties were considered as emerged from the principles of the revolution, combined with local convenience and considerations; the people, nevertheless, continued to consider themselves, in a national point of view, as one people; and they continued, without interruption, to manage their national concerns accordingly; afterwards, in the hurry of the war, and in the warmth of mutual confidence, they made a confederation of the states, the basis of a general government. Experience disappointed the expectations they had formed from it; and then the people, in their collective and national capacity,[1] established the present constitution.

*471] It is remarkable, *that in establishing it, the people exercised their own rights, and their own proper sovereignty, and conscious of the plenitude of it, they declared with becoming dignity, "We, the people of the United States, do ordain and establish this constitution." Here we see the people acting as sovereigns of the whole country; and in the language

[1] It is not to be inferred, from the language of the judges, in this and other cases, that the preamble to the constitution points to the majority of the whole people of the United States, in their aggregate collective capacity, as the original depository of the powers conferred by that instrument; the true doctrine would seem to be, that the constitution was adopted by the people of the several states, who had been previously been confederated under the name of the United States, acting through the delegates, by whom they were respectively represented in the convention which formed the constitution. Baldwin's Constitutional Views, 29–42. And see Worcester *v.* Georgia, 6 Pet. 569, where it is said by Judge McLean, to have been formed "by a combined power, exercised by the people, through their delegates, limited in their sanctions to the respective states. For the opposite view, see Judge Sprague's charge to the grand jury, in March 1863, during the heat of the rebellion, when the doctrine of state sovereignty was deemed a political heresy, and the expression of it, almost as an act of treason. 2 Sprague 292. But it is true, nevertheless: "the earth does move," though it may be a heresy to assert it. Even Chief Justice Agnew, of the supreme court of Pennsylvania, an ardent advocate of the federal theory, says, in Craig *v.* Kline, 65 Penn. St. 399, that it is a difficult problem to define the boundaries of state and federal powers; the doctrine of the rights of the states, pushed to *excess*, culminated in civil war; the rebound caused by the success of the federal arms, threatens a consolidation equally serious. The 9th and 10th amendments to the constitution expressly provide, that "the enumeration in the constitution of certain rights, shall not be construed to deny or disparage others, retained by the people;" and that "the powers not *delegated* to the United States, by the constitution, nor prohibited by it to the states, are reserved to the states, respectively, or to the people."

of sovereignty, establishing a constitution by which it was their will, that the state governments, should be bound, and to which the state constitutions should be made to conform. Every state constitution is a compact made by and between the citizens of a state, to govern themselves in a certain manner; and the constitution of the United States is likewise a compact made by the people of the United States, to govern themselves, as to general objects, in a certain manner. By this great compact, however, many prerogatives were transferred to the national government, such as those of making war and peace, contracting alliances, coining money, &c.

If, then, it be true, that the sovereignty of the nation is in the people of the nation, and the residuary sovereignty of each state in the people of each state, it may be useful to compare these sovereignties with those in Europe, that we may thence be enabled to judge, whether all the prerogatives which are allowed to the latter, are so essential to the former. There is reason to suspect, that some of the difficulties which embarrass the present questions, arise from inattention to differences which subsist between them.

It will be sufficient to observe briefly, that the sovereignities in Europe, and particularly in England, exist on feudal principles. That system considers the prince as the sovereign, and the people as his subjects; it regards his person as the object of allegiance, and excludes the idea of his being on an equal footing with a subject, either in a court of justice or elsewhere. That system contemplates him as being the fountain of honor and authority; and from his grace and grant, derives all franchises, immunities and privileges; it is easy to perceive, that such a sovereign could not be amendable to a court of justice, or subjected to judicial control and actual constraint. It was of necessity, therefore, that suability became incompatible with such sovereignty. Besides, the prince having all the executive powers, the judgment of the courts would, in fact, be only monitory, not mandatory to him, and a capacity to be advised, is a distinct thing from a capacity to be sued. The same feudal ideas run through all their jurisprudence, and constantly remind us of the distinction between the prince and the subject. No such ideas obtain here; at the revolution, the sovereignty devolved on the people; and they are truly the sovereigns of the country, but they are sovereigns without subjects (unless the African *slaves among us may be so called) and have none to govern but themselves; the citizens of [*472
America are equal as fellow-citizens, and as joint-tenants in the sovereignty.

From the differences existing between feudal sovereignties and governments founded on compacts, it necessarily follows, that their respective prerogatives must differ. Sovereignty is the right to govern; a nation or state-sovereign is the person or persons in whom that resides. In Europe, the sovereignty is generally ascribed to the prince; here it rests with the people; there, the sovereign actually administers the government; here, never in a single instance; our governors are the agents of the people, and at most stand in the same relation to their sovereign, in which regents in Europe stand to their sovereigns. Their princes have personal powers, dignities and pre-eminences, our rulers have none but official; nor do they partake in the sovereignty otherwise, or in any other capacity, than as private citizens.

2d. The second object of inquiry now presents itself, viz., whether suability is compatible with state sovereignty.

Suability by whom? Not a subject, for in this country there are none;

not an inferior, for all the citizens being, as to civil rights, perfectly equal, there is not, in that respect, one citizen inferior to another. It is agreed, that one free citizen may sue another; the obvious dictates of justice, and the purposes of society demanding it. It is agreed, that one free citizen may sue any number on whom process can be conveniently executed; nay, in certain cases, one citizen may sue forty thousand; for where a corporation is sued, all the members of it are actually sued, though not personally sued. In this city, there are forty odd thousand free citizens, all of whom may be collectively sued by any individual citizen. In the state of Delaware, there are fifty odd thousand free citizens, and what reason can be assigned why a free citizen who has demands against them, should not prosecute them? Can the difference between forty odd thousand, and fifty odd thousand make any distinction as to right? Is it not as easy, and as convenient to the public and parties, to serve a summons on the governor and attorney-general of Delaware, as on the mayor or other officers of the corporation of Philadelphia? Will it be said, that the fifty odd thousand citizens in Delaware, being associated under a state government, stand in a rank so superior to the forty odd thousand of Philadelphia, associated under their charter, that although it may become the latter to meet an individual on an equal footing in a court of justice, yet that such a procedure would not comport with the dignity of the former? In this land of equal liberty, shall forty odd thousand, in one place, be compellable to do justice, and yet
*473] fifty odd thousand, in *another place, be privileged to do justice only as they may think proper? Such objections would not correspond with the equal rights we claim; with the equality we profess to admire and maintain; and with that popular sovereignty in which every citizen partakes. Grant that the governor of Delaware holds an office of superior rank to the mayor of Philadelphia, they are both nevertheless the officers of the people; and however more exalted the one may be than the other, yet, in the opinion of those who dislike aristocracy, that circumstance cannot be a good reason for impeding the course of justice.

If there be any such incompatibility as is pretended, whence does it arise? In what does it consist? There is at least one strong undeniable fact against this incompatibility, and that is this, any one state in the Union may sue another state, in this court, that is, all the people of one state may sue all the people of another state. It is plain, then, that a state may be sued, and hence it plainly follows, that suability and state sovereignty are not incompatible. As one state may sue another state in this court, it is plain, that no degradation to a state is thought to accompany her appearance in this court. It is not, therefore, to an appearance in this court, that the objection points. To what does it point? It points to an appearance at the suit of one or more citizens. But why it should be more incompatible, that all the people of a state should be sued by one citizen, than by one hundred thousand, I cannot perceive, the process in both cases being alike; and the consequences of a judgment alike. Nor can I observe any greater inconveniencies in the one case than in the other, except what may arise from the feelings of those who may regard a lesser number in an inferior light. But if any reliance be made on this inferiority as an objection, at least one-half of its force is done away, by this fact, viz., that it is conceded that a state may appear in this court, as plaintiff, against a single